# 4.3 Rights in England and the Colonies

The colonists considered themselves English and felt they were entitled to the same rights that the citizens of England enjoyed. And for a while, the English government let them think that.

**MAIN IDEA** Political changes in England that balanced the power between Parliament and the king helped set the American colonies on the path to democracy.

## ENGLISH PARLIAMENT

Of course, the English themselves hadn't always enjoyed many rights. As you have learned, the Magna Carta, or Great Charter, began to change all that. The Magna Carta put protections in place to keep the English people from losing their freedom or property unless the law of the land ruled against them.

This important document helped give rise to **Parliament**, the legislative body of England, and later, Great Britain. Parliament consisted of two houses: the House of Lords, made up of nobles and high church officials, and the House of Commons, whose members were elected by male landowners.

Parliament's power grew in the late 1600s after clashing with King James II, who was a Catholic. Fearing James would make England a Catholic country under authoritarian rule, parliamentary leaders exiled him to France. They then invited his Protestant daughter, Mary, and her husband, William, to take the throne.



**The Magna Carta and the Colonies**

This stained glass in the Mansion House in London, England, home to the city's Lord Mayor, depicts the signing of the Magna Carta. The document established that the king was not above the law. Henry III, John's successor, reissued slightly revised Magna Cartas in 1216, 1217, and 1225. The 1225 version became English law in 1297. Hundreds of years later, the English colonists believed that they, too, possessed the rights guaranteed in the Magna Carta. During the American Revolution, colonists drew on principles in the Magna Carta for their Declaration of Independence and rebellion against the tyranny of King George III.



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**CRITICAL VIEWING** James II was often in conflict with the Parliament in England and with the colonies. He revoked colonial charters from New Jersey to Maine and established the Dominion of New England. What details in this painting convey the king's high status?

At the same time, Parliament permanently limited the English monarch's power. It established Parliament's control of taxation, and its right to pass laws, and it also secured the independence of the courts. Parliament's consent was necessary for raising an army in peacetime and in the case of any foreign invasions. The bloodless overthrow of James II and the transferring of power to Parliament was called the Glorious Revolution. Parliament created the **English Bill of Rights of 1689** (more formally known as "An Act Declaring the Rights and Liberties of the Subject and Settling the Succession of the Crown") to officially protect the rights of English citizens and Parliament.

Many believed the balancing of powers would prevent a single individual or social group from becoming too dominant. Power shared by the king, the nobles, and the common people was thought to be the way to avoid more destructive forms of government that could threaten the liberty of some portion of the population.

## COLONIAL ASSEMBLIES

The American colonies modeled their governments after Parliament by forming elected assemblies similar to the House of Commons. The colonial assemblies consisted of representatives elected by property owners. The assemblies could collect money through taxes and decide how to spend it.

Unlike the English legislature, however, elected officials in the assemblies lived in the area they represented. The colonists believed that representatives who lived among the people who elected them would better understand local interests and needs.

As colonists came to enjoy making decisions and managing some of their own affairs, they began to resent English authority. The colonists had no representatives in Parliament and sometimes felt they were treated unfairly—especially when Parliament passed laws the colonists didn't like.

For the most part, though, the English government was busy fighting foreign wars and dealing with disagreements within the country itself. So the government adopted a policy of **salutary neglect** toward the colonies. Under this policy, the English government did not strictly enforce its colonial policies. As a result, the colonies grew happily accustomed to living in relative isolation from British authority and largely governing themselves. They were generally content with British rule. But that state of affairs was about to change.

### HISTORICAL THINKING

1. **READING CHECK** How did Parliament influence the growth of representative government in the colonies?
2. **SUMMARIZE** How did the Magna Carta pave the way for the English Bill of Rights?
3. **IDENTIFY MAIN IDEAS AND DETAILS** What rights did Parliament establish in the English Bill of Rights?



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